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DECLARATION OF COVENANTS, CONDITIONS
AND RESTRICTIONS APPLICABLE TO HARTSTENE POINTE
RECORDED
Kenneth Jones
ADDITION NO. 10

THIS DECLARATION, made on the date hereinafter set forth,
by THE QUADRANT CORPORATION, hereinafter referred to as "Declarant,"

W I T N E S S E T H :

WHEREAS, Declarant is the Owner of that certain real
property on the north tip of Hartstene Island in Mason County,
Washington, which has been specifically described and identified
as: Hartstene Pointe, Addition 2, as recorded in Volume 9 of Plats,
pages 28 through 40, Records of Mason County, Washington, under
Auditor's Fee No. 265849; Hartstene Pointe, Addition 5, as recorded
in Volume 9 of Plats, pages 63 through 65, Records of Mason County,
Washington, under Auditor's Fee No. 274106; Hartstene Pointe,
Addition 6, as recorded in Volume 9 of Plats, pages 66 and 67,
Records of Mason County, Washington, under Auditor's Fee No. 274109,

WHEREAS, Declarant is the owner of all of the lots in
Additions 2, 5, and 6, and

WHEREAS, Declarant has replatted and subdivided said
Additions 2, 5 and 6, Hartstene Pointe, pursuant to RCW 58.17 by
means of a second plat entitled "Hartstene Pointe, Addition No. 10"
which is being recorded in the records of Mason County concurrently
with this Declaration, and

WHEREAS, Declarant intends to sell the Platted Residential Lots in said Addition 10,

NOW, THEREFORE, Declarant hereby declares that all of said Platted Residential Lots shall be held, sold and conveyed subject to the easements, restrictions, covenants, and conditions hereinafter set forth. These easements, restrictions, covenants and conditions are intended to protect the value and desirability of the aforesaid real property. They shall run with the aforementioned Platted Residential Lots and shall be binding on all parties having or acquiring any right, title, or interest in these Platted Residential Lots or any part thereof, as well as their heirs, successors and assigns. They shall inure to the benefit of each present or future owner of the aforementioned real property or any part thereof or interest therein. They amend Declarant's previous "Declaration of Covenants, Conditions and Restrictions" recorded for Hartstene Pointe, Addition 2, in the Mason County Land Records under County Auditor's Fee No. 254422 and Addendums thereto, under County Auditor's Fee No. 260573 and as amended, superseded and cancelled under County Auditor's Fee No. 269873; for Hartstene Pointe, Addition 5, in the Mason County Land Records under County Auditor's Fee No. 274107; and for Hartstene Pointe, Addition 6, in the Mason County Land Records under County Auditor's Fee No. 274110, by superseding and cancelling them.

ARTICLE I

DEFINITIONS

Section 1. "Association" means the Hartstene Pointe Maintenance Association, a Washington nonprofit corporation.

Section 2. "Declarant" means The Quadrant Corporation, the maker of this Declaration and the record owner of the real property.

Section 3. "Real property" means the entire land area shown and described by the Plat, including the tidelands abutting on such land area to the extent that they are Declarant's property.

Section 4. "Plat" means the plat of Hartstene Pointe, Addition No. 10, which Declarant filed for recording with the Mason County Auditor concurrently with this Declaration, and which was recorded in Volume 9 of Plats on Pages 131 to 132 inclusive, under Mason County Auditor's Fee No. 290445.

Section 5. "Platted Residential Lots" means the rectangular lots shown on the Plat and identified thereon by arabic numerals running from 1 to 45.

Section 6. "Common Area" means all Real Property to be transferred to and to be held by the Association for the common use, enjoyment or benefit of the owners. The Common Area on the Real Property consists of lot numbers 46, 47 and 49 on the Plat. All permanent structures and fixtures upon the Common Area, including roads and utility systems, shall be deemed a part thereof.

Section 7. "Owner" means the owner or the contract purchaser in possession of a Platted Residential Lot. Declarant shall be considered the Owner of all lots not yet sold, or reacquired, by it.

Section 8. "Hartstene Pointe, Addition No. 10" means the residential community shown by the Plat. It will consist of 45 Platted Residential Lots, the Common Area, and Lot 48 which contains the sewage treatment plant.

Section 9. "Hartstene Pointe" means the whole of the recreational-residential complex which Declarant intends to create and develop in the northern part of Hartstene Island in Mason County, Washington, and of which Hartstene Pointe, Addition No. 10 is the eleventh platted subdivision. It will consist of all lawfully platted subdivisions identified as "Hartstene Pointe" or additions thereto on the duly recorded plats thereof.

Section 10. "Membership" means the members of the Association.

ARTICLE II

PROPERTY RIGHTS

Section 1. Owners' Easement of Enjoyment.

Each Owner shall have a nonexclusive right and easement of enjoyment in and to the Common Area which shall be appurtenant to and shall pass with the title to the Owner's lot. Such right and easement shall be subject to the following:

A. The right of the Association to charge reasonable admission and other fees for the use of any recreational facilities and the services rendered by any utility system situated upon the Common Area;

B. The right of the Association to suspend the voting rights and the right to use the Common Area of an Owner for any period during which

- (i) any assessment against his lot remains unpaid, or
- (ii) any violation of these covenants or of the Association's published rules for which he is responsible remains unabated;

C. The right of the Association, acting through its Board of Directors, to dedicate and transfer any utility system on, or which may be a part of, the Common Area, to Mason County;

D. The right of the Association to dedicate and transfer all or any part of the remainder of the Common Area to any public agency, authority, or utility for such purposes, in such manner and subject to such conditions as may be consistent with the Association's Articles of Incorporation, its Bylaws, and the Washington Nonprofit Corporation Act; and

E. The nonexclusive right of all other members of the Association to use, enjoy and have the benefit of the Common Area upon the same terms.

Section 2. Delegation of Use.

An Owner may delegate, in accordance with such rules and regulations as the Association may promulgate, his right of enjoyment of the Common Area and common facilities to the members of his family, his tenants, and his contract purchasers in possession.

Section 3. Utility Easement.

Each Owner, the Association, Declarant, Mason County, Mason County PUD #3, Pacific Northwest Bell Telephone and their successors in the operation of the water, sanitary sewer, storm sewer, power and telephone systems serving Hartstene Pointe shall

have a nonexclusive easement for purposes of operation, maintenance, improvement, and repair of the utility conduits which cross some of the Platted Residential Lots. The easement shall cover that portion of the Platted Residential Lots as shown on the detailed drawings for the Platted Residential Lots attached to these Covenants. This easement is subject to the following terms and conditions:

- A. Work will be done in such a manner as to cause the least possible disturbance to existing vegetation.
- B. All areas affected by construction must be brought back to the general condition that existed before construction began.
- C. Each Owner's easement is limited to those Platted Residential Lots which are crossed by a utility conduit serving his own lot.

Section 4. Road Easement.

- A. Each Owner shall have a nonexclusive easement for ingress and egress in that portion of the Common Area designated as "Private Road" and "Easement for Ingress, Egress & Utilities" on the Plat.
- B. The Association, Declarant, and all private and public utilities serving Hartstene Pointe shall have a nonexclusive easement for purposes of operation, maintenance, improvement and repair of the utility conduits situated in that portion of the Common Area designated as "Private Road" and "Easement for Ingress & Utilities" on the Plat. The areas affected by construction must be brought back to the general condition that existed before construction began.

ARTICLE III

DECLARANT'S DUTY TO CONVEY AND
ASSOCIATION'S DUTY TO ACCEPT
COMMON AREA

Declarant shall convey to the Association, and the Association shall accept, all or any part of the Common Area as soon as the Association is able to operate and maintain the same in a manner appropriate to the needs and desires of the Owners, or as soon as the Association has an opportunity and wishes to dedicate the same to Mason County or some other suitable governmental body. This Article is not intended to authorize Declarant to delay the transfer of the Common Area indefinitely or otherwise unreasonably.

ARTICLE IV

THE ASSOCIATION AND MEMBERSHIP
AND VOTING RIGHTS THEREIN

Section 1. Every Owner of a Platted Residential Lot shall be a member of the Association. Membership shall be appurtenant to and may not be separated from ownership of one or more lots.

Section 2. To the extent that they touch and concern the land described by the Plat, the Articles of Incorporation and Bylaws of the Association shall be deemed covenants running with the land, and shall be as binding upon Owners as if verbatim recited herein.

Section 3. The voting rights of Association members shall be as specified in the Association's Bylaws.

ARTICLE V
ASSESSMENTS

Section 1. Creation of the Lien and Personal Obligation of Assessments.

Each Owner, other than Declarant, by accepting a deed to or land contract for a Platted Residential Lot (whether or not it shall be so expressed in such instrument), shall be deemed to covenant to pay to the Association

- (1) regular annual assessments, and
- (2) special assessments for capital improvements.

The regular annual and special assessments are to be established and collected as hereinafter provided. The regular annual and special assessments, together with interest, costs, and reasonable attorney's fees, shall be a charge on each Owner's Platted Residential Lot, and shall be a continuing lien upon the Platted Residential Lot against which each such assessment is made. Each such assessment, together with interest, costs, and reasonable attorney's fees, shall also be the personal obligation of the person who was the Owner of such Platted Residential Lot at the time when the assessment fell due.

Section 2. Purpose of Assessments.

(a) The regular annual assessments levied by the Association shall be used exclusively to administer these covenants, to maintain and improve the Common Area, and generally to promote the recreation, health, safety, comfort, convenience and welfare of the Owners of Platted Residential Lots in Hartstene Pointe.

(b) The special assessments levied by the Association shall be used exclusively for the capital improvements proposed in the notice of the membership meeting at which each such special assessment was approved.

Section 3. Maximum Regular Annual Assessments.

(a) The first year in and for which regular annual assessments shall be established and collected shall be the calendar year 1974. The regular annual assessment for such year shall not exceed \$96 per Platted Residential Lot. This amount does not include charges for utility services.

(b) Beginning January 1, 1975, the maximum annual assessment may be increased each year not more than 3% above the maximum assessment for the previous year without a vote of the membership.

(c) Beginning January 1, 1975, the maximum regular annual assessment may be increased above 3% by a vote of 2/3 of each class of members who are voting in person or by proxy, at a meeting duly called for this purpose.

(d) The Board of Directors may fix the regular annual assessment at an amount not in excess of the maximum.

Section 4. Special Assessments for Capital Improvements.

In addition to the regular annual assessments authorized above, the Association may levy, in any assessment year, a special assessment applicable to that year only for the purpose of defraying, in whole or in part, the cost of any construction, reconstruction, repair or replacement of a capital improvement upon the Common Area, including fixtures and personal property

related thereto, provided that any such assessment shall have the assent of two-thirds of the votes of each class of members who are voting in person or by proxy at a meeting duly called for this purpose.

Section 5. Notice and Quorum for any Action Authorized under Sections 3 and 4.

Written notice of any meeting called for the purpose of taking any action authorized under Section 3 or Section 4 of this Article V shall be sent to all members not less than 30 days nor more than 50 days in advance of the meeting. At the first such meeting called, the presence of members or of proxies entitled to cast 50% of all votes entitled to be cast by each class of members shall constitute a quorum. If the required quorum is not present, another meeting may be called subject to the same notice requirement, and the required quorum at such subsequent meeting shall be one-half of the required quorum at the preceding meeting. No such subsequent meeting shall be held more than 50 days following the preceding meeting.

Section 6. Uniform Rate of Assessment.

Regular annual and special assessments must be fixed at a uniform rate for all Platted Residential Lots subject to assessment.

Section 7. Date of Commencement of Regular Annual Assessments - Due Dates.

The regular annual assessments provided for herein shall commence as to all lots subject thereto on the first day of 1974. The Board of Directors shall fix the amount of the regular annual

assessment against each lot at least 30 days in advance of the beginning of each annual assessment period. Written notice of the regular annual assessment shall be sent to every Owner subject thereto. The due dates shall be established by the Board of Directors. Assessments may be collected in advance and in such a manner, at such times, and in such installments as the Board of Directors may require. The Association shall, upon demand, and for a reasonable charge, furnish a certificate signed by an officer of the Association setting forth whether the assessments on a specified Platted Residential Lot have been paid.

Section 8. Proration.

When an Owner purchases a Platted Residential Lot after January 1, 1974, his liability for the regular annual and special assessments which have been established for the year of purchase shall be prorated in accordance with the number of days remaining in that year on the date of purchase. Such prorated assessments shall be due and payable on the day of closing.

Section 9. Effect of Nonpayment of Assessment;
Remedies of the Association.

Any assessment not paid within 30 days after the due date shall bear interest from the due date at the rate of 9% per annum. The Association may bring an action at law against the Owner personally obligated to pay the same, or foreclose the lien against the Platted Residential Lot subject thereto. No Owner subject to assessment may waive or otherwise escape liability for the assessments provided for herein by nonuse of the Common Area or

abandonment of his lot. The Association may suspend a delinquent Owner's voting rights and his right to use, enjoy and have the benefit of the Common Area for such period as his delinquency continues.

Section 10. Subordination of Assessment Liens
to Declarant's Security Interest.

The lien of the assessments provided for herein shall be subordinate to any security interest of Declarant in any Platted Residential Lot which secures any Owner's obligation to pay Declarant the purchase price of such Platted Residential Lot.

ARTICLE VI

ARCHITECTURAL CONTROLS

No building, fence, wall or other structure shall be commenced, erected or maintained upon Platted Residential Lots or the Common Area or any part thereof, nor shall any exterior addition to, or change or alteration therein, be made until the plans and specifications showing the nature, kind, shape, height, materials and location of the same shall have been submitted to and approved in writing as to harmony of external design and location in relation to surrounding structures and topography by the Board of Directors of the Association, or by an Architectural Control Committee composed of three members appointed by the Board.

No building, fence, wall or other structure shall be constructed on the portion of each Platted Residential Lot subject to the utility easement described in Article II, Section 3 unless the Board of Directors of the Association or the Architectural Control Committee has determined that the building or structure will not interfere with the operation, maintenance, improvement and repair of any utility lines located therein which serve another Platted Residential Lot.

In the event said Board, or the Architectural Control Committee, fails to approve or disapprove the design and location within 45 days after said plans and specifications have been submitted to it, approval will not be required, and this Article will be deemed to have been fully complied with.

No landscaping work, including the removal of natural trees, shrubs, brush and other ground cover, shall be undertaken on any Platted Residential Lot until the plans and specifications showing the nature and other details of the proposed work shall have been submitted to and approved in writing by the Board of Directors of the Association or by the aforementioned Architectural Control Committee appointed by the Board. In the event said Board, or its designated Committee, fails to approve or disapprove of such proposed landscaping work within 45 days after said plans and specifications have been submitted to it, approval will not be required and this Article will be deemed to have been fully complied with.

The requirements of this Article shall not apply to the Declarant.

ARTICLE VII

LAND USE RESTRICTIONS

Section 1. Platted Residential Lots shall be used for single-family residential purposes only.

Section 2. There shall be no water wells on Platted Residential Lots. Owners of such lots desiring a water supply must be connected to the central community water system to be installed by Declarant.

Section 3. No sewage or sanitary waste disposal facility of any kind other than the central community sewer system to be installed by Declarant shall be installed or used upon the Real Property. Owners of Platted Residential Lots requiring sewer or sanitary waste disposal service must obtain the same from the said central community sewer system.

Section 4. No signs shall be erected or maintained on any Platted Residential Lot except

(a) one sign of not more than 3 square feet identifying lot owners or occupants, and

(b) one sign of not more than 6 square feet, advertising a Platted Residential Lot for sale or rent.

Nothing herein shall preclude Declarant or its sales agents from erecting and maintaining such temporary signs and structures as may, in Declarant's judgment, promote the development and sale of Platted Residential Lots or other interests in the Real Property.

Section 5. No trees, hedges, shrubbery, or other plants exceeding six feet in height shall be placed or planted on any Platted Residential Lot, nor shall any such planted tree, hedge, shrub or other plant be allowed to grow to a height in excess of six feet without the written approval of the Association's Board of Directors or the Architectural Control Committee designated by the Board of Directors.

Section 6. No Platted Residential Lot shall be used for the keeping, raising, or breeding of animals. However, common household pets such as dogs and cats may be kept on a Platted Residential Lot for noncommercial purposes if and so long as they do not become a nuisance.

Section 7. No trash, garbage, rubbish, refuse, or other solid waste of any kind, including particularly inoperable automobiles, appliances and furniture, shall be thrown, dumped, stored, disposed of, or otherwise placed on any part of the Real Property. Garbage and similar solid waste shall be kept in sanitary containers well suited for that purpose. These containers shall be stored in such places and such manner as the Association may by published rules prescribe. The Owner or occupant of each Platted Residential Lot shall be responsible for the disposal of solid waste at legally established solid waste disposal facilities outside the Real Property.

Section 8. No Platted Residential Lot shall ever be subdivided.

Section 9. The use of firearms or explosives is prohibited, except as required for construction work duly authorized by the Board of Directors or the Architectural Control Committee.

Section 10. No Owner shall change or interfere with the natural drainage of the Real Property without the prior written approval of the Board of Directors or the Architectural Control Committee.

Section 11.

A. The permanent use or storage upon Platted Residential Lots of house trailers, mobile homes and similar vehicles as dwellings is prohibited. Such vehicles may be used temporarily, with the written approval of the Board of Directors or the Architectural Control Committee, and upon such terms and conditions as the Board of Directors or Architectural Control Committee may choose to prescribe.

B. Boat trailers and boats may be parked or stored on Platted Residential Lots with the written permission of the Board of Directors or the Architectural Control Committee, provided they are adequately screened from public view. The Board of Directors or Architectural Control Committee shall determine what constitutes adequate screening, and such determination shall be conclusive.

C. Travel trailers and campers may be used or parked on Platted Residential Lots

- (i) during the Owner's vacation for a period not exceeding two weeks, or
- (ii) on weekends or holidays, or

- (iii) with the written permission of the Board of Directors or Architectural Control Committee during the period in which a permanent dwelling is constructed upon the Owner's Platted Residential Lot.

During the temporary use of travel trailers or campers under the authority of this subsection, all applicable covenants and restrictions shall be strictly complied with, particularly that concerning sanitary sewage disposal (Article VII, Section 3).

Section 12. No basements, garages, sheds, shacks, outbuildings or impermanent structures such as tents shall be used as dwellings on any Platted Residential Lots except

- (a) with the written permission of the Board of Directors or Architectural Control Committee,
- (b) and then only for such relatively short periods of time as may be specified in the written permit authorizing such use.

Section 13. No fuel tanks shall be maintained above ground on any Platted Residential Lot without written permission of the Board of Directors or Architectural Control Committee, which may grant such permission subject to adequate screening and other appropriate requirements.

Section 14. No Platted Residential Lot shall ever be used in a fashion which unreasonably interferes with the other lot Owners' or the Association's right to the use and enjoyment of the Common Area. The Board of Directors of the Association or the Architectural Control Committee designated by it shall deter-

mine whether any given use of a Platted Residential Lot unreasonably interferes with those rights, and such determination shall be conclusive.

Section 15. The space, if any, under any building on any Platted Residential Lot may be used for the storage of articles other than boats and boat trailers subject to such uniform rules and screening requirements as the Association may prescribe.

ARTICLE VIII BUILDING RESTRICTIONS

Section 1. Only detached single-family residences and appurtenant outbuildings such as garages, woodsheds, and the like, may be constructed or permitted to remain on Platted Residential Lots. Only one such residence may be built on each Platted Residential Lot.

Section 2. No construction of such a structure may be started on any Platted Residential Lot without first obtaining

(a) a building permit from the proper local governmental authority, and

(b) a building permit from the Board of Directors of the Association or the Architectural Control Committee designated by it pursuant to Article VI of these Covenants.

Section 3. Each single-family residence on a Platted Residential Lot shall contain a minimum floor area of 600 square feet exclusive of second floors, open decks (covered or uncovered), garages, covered carports, sheds or other outbuildings.

Section 4. All buildings constructed hereunder shall conform to the specifications and requirements of the most recent revisions of the State of Washington electrical code and the uniform building code in force at the commencement of construction.

Section 5. No building constructed hereunder shall exceed 14 feet in height measured from the original grade unless the Board of Directors or the Architectural Control Committee designated by it grants written permission that this height be exceeded. Such permission may be granted if the Board or Committee is satisfied that no unreasonable interference with the view from neighboring lots will result therefrom.

Section 6. Exterior finishes shall have a flat, non-glossy appearance, and colors shall tend to dark grays, gray-greens and browns. Exterior trim shall be stained or painted so as to complement the finishes they adjoin.

Section 7. All buildings on Platted Residential Lots shall have roof eaves and rake overhangs of not less than 24". The Board of Directors or its Architectural Control Committee may, upon application, grant exemptions from this requirement to Owners who establish, to the satisfaction of the Board of Directors or the Architectural Control Committee, that the building designs

desired by the applicants are aesthetically as appealing, as suited to climatic conditions and as compatible with the overall character of Hartstene Pointe as buildings which do meet this requirement.

Section 8. The exterior of any buildings constructed hereunder (including painting or other suitable finish) shall be completed within one (1) year of the beginning of construction so as to present a finished appearance when viewed from any angle. The building area shall be kept reasonably clean during the construction period.

Section 9. At the time a permanent dwelling is built on a Platted Residential Lot, adequate off-street parking for at least two cars shall be provided on the lot.

Section 10. Garages on Platted Residential Lots may be detached from the main structure. However, carports and patios must be a part of the main structure or connected to it by a roof or fence. At least one side of a carport must be enclosed. The design and roof materials of garages and carports shall be compatible with those of the main dwelling.

Section 11. No fence, wall, hedge or landscaping that has a screening effect shall be erected, located, planted or maintained upon any Platted Residential Lot

(a) without the written approval of the Board of Directors or its Architectural Control Committee, or

(b) in a manner which would unreasonably obstruct the view from any other Platted Residential Lot. Fences on Platted Residential Lots shall be of wood, stone or brick.

Section 12. Entrances to Platted Residential Lots shall be as originally constructed. Other or additional entranceways or trails may only be constructed or maintained with the written permission of the Board of Directors or its Architectural Control Committee.

Section 13. No building or structure of any kind, erected or maintained or suffered to be erected or maintained by the Owner of a Platted Residential Lot (including particularly piers, floats, docks, or diving boards) may trespass or encroach upon the Common Area. The Association shall have authority to abate any such trespass or encroachment upon the Common Area at any time, by any reasonable means and without having to bring legal proceedings.

Section 14. Exterior lighting of any sort which is visible from any street shown on the plat, any part of the Common Area, or any other Platted Residential Lot in Hartstene Pointe may be installed only with the written permission of the Board of Directors or its Architectural Control Committee.

Section 15. Buildings on Platted Residential Lots requiring sewer service shall be connected to the central community sewer system at the Owner's expense and in a manner which meets with the approval of the Board of Directors or the Architectural Control Committee. The plans for and specifications of such connections shall be submitted as a part of the Owner's application for a building permit.

Section 16. All buildings and landscaped grounds on any Platted Residential Lot shall be kept in a safe and reasonable state of repair, cleanliness and neatness. Lawns shall be mowed at reasonable intervals. Undesirable weeds having a tendency to spread across property lines shall be kept under control.

ARTICLE IX

INTERPRETATION, ADMINISTRATION AND ENFORCEMENT OF THESE COVENANTS

Section 1. If the Board of Directors chooses to appoint an Architectural Control Committee as hereinbefore provided, such Committee shall have primary and exclusive jurisdiction to interpret, administer and enforce these covenants and find all facts relative to any claimed or suspected violation. The Association may collect a reasonable application fee from applicants for

permits required under Article VI, Article VII, or Section 2 (b) of Article VIII hereof.

Any Owner adversely affected by Committee action may appeal to the Board of Directors. Appeals shall be made in writing within ten days of the Committee's action, and shall set forth the part of the Committee's action deemed objectionable. The appeal shall be considered by the Board at its next scheduled meeting, and a final and conclusive determination shall be made by the Board within 15 days after such meeting.

The Committee shall be responsible for seeing to it that lot Owners who may be adversely affected by a Committee decision are given reasonable notice thereof.

Section 2. The Association, acting through its Architectural Control Committee, if any, and its Board of Directors shall be primarily responsible for enforcing these covenants and for preventing and abating violations thereof. In performing this function it may avail itself of such injunctive and other legal remedies as may be available to it under Washington law. The Association may charge the costs of preventing or abating a violation of these covenants to the offending Owner and add the amount thereof to his next regular annual or special assessment. Such costs may include a reasonable attorney's fee.

Section 3. Any Owner may complain of an actual or threatened violation of these covenants to the Architectural Control Committee if there is one, or to the Board of Directors, if there is none,

and demand that the Association prevent or abate the same. No Owner may sue to prevent or abate an actual or threatened violation of these covenants without having done so and without having exhausted the remedies available to him within the Association. However, no building the construction of which has been commenced and no landscaping, remodeling or alteration work which has been completed shall be deemed in violation of these covenants if the same was authorized by permits issued pursuant to Article VI, Article VII, or Section 2 of Article VIII of these covenants.

ARTICLE X

AMENDMENT

The covenants and restrictions of this Declaration shall run with and bind the land for a term of 20 years from the date this Declaration is recorded, after which time they shall be automatically extended by successive periods of ten years. This Declaration may be amended during the first 20-year period by an instrument signed by not less than 90% of the lot Owners, and thereafter by an instrument signed by not less than 75% of the lot Owners. Any amendment must be recorded.

ARTICLE XI

ANNEXATION

Declarant shall have the option to add to Hartstene Pointe further residential and commercial property and common area

REEL 117 Fr. 670

located in Sections 19 and 30 of Township 21 North, Range 1 West, of Willamette Meridian and Sections 24 and 25, Township 21 North, Range 2 West of Willamette Meridian, by recording plats identifying the same as further additions to Hartstene Pointe.

ARTICLE XII

SEVERABILITY

Invalidation of any one of these covenants or restrictions by judgment or court order shall in no way affect or invalidate any other provision, which shall remain in full force and effect.

IN WITNESS WHEREOF, the undersigned, being the Declarant herein, has hereunto set its hand and corporate seal this

24th day of June, 1974

THE QUADRANT CORPORATION
DECLARANT

By Dick Willard
Dick Willard, President

STATE OF WASHINGTON)
COUNTY OF KING } ss.

REEL 117 FR. 671

On this 24th day of June, 1974, before me personally appeared Dick Willard, to me known to be the President of the corporation that executed the within and foregoing instrument and acknowledged said instrument to be the free and voluntary act and deed of said corporation for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument and that the seal affixed is the corporate seal of said corporation.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.



[Signature]
Notary Public in and for the
State of Washington
Residing at [Signature]

